

OPEN TENDER NOTIFICATION

FOR

Purchase of SAN Switches

Tender Enquiry No.: TPDDL/ENGG/ENQ/ 200001836/25-26

Due Date for Bid Submission: 21.07.2025 [16:00 Hrs.]

**Tata Power Delhi Distribution Limited
(A Tata Power and Delhi Government Joint Venture)
Contracts Deptt., Corporate Office, NDPL House,
33 kV Grid Substation Building, Hudson Line, Kingsway Camp
Delhi-110009**

CONTENTS OF THE ENQUIRY

S. No.	PARTICULARS
1.	Event Information
2.	Evaluation Criteria
3.	Submission of Bid Documents
4.	Bid Opening & Evaluation process
5.	Award Decision
6.	Order of Preference/Contradiction
7.	Post Award Contract Administration
8.	Specifications and Standards
9.	General Conditions of Contract
10.	Safety
11.	Sustainability
Annexures	
I.	Annexure I – Schedule of Items
II.	Annexure II – Technical Specifications
III.	Annexure III – Schedule of Deviations
IV.	Annexure IV – Schedule of Commercial Specifications
V.	Annexure V – Document Check List for tender
VI.	Annexure VI – Acceptance Form for Participation in Reverse Auction Event
VII.	Annexure VII – General Conditions of Contract
VIII.	Annexure VIII – Scope of Work (SOW)/ Service Level Agreement (SLA)
IX.	Annexure IX - Guiding Principles for Sustainable Procurement
XI.	Annexure X – Responsible Value Chain Declaration
XII.	Annexure XI – Declaration for Sustainability Compliance
XIII.	Annexure XII – Questionnaire of SSI
XIV.	Annexure XIII- Communication Matrix
XV.	Annexure XIV – Manufacturers Authorization Form

1.0 Event Information

1.1 Scope of work

Open Tenders are invited in E-Tender Bidding Process from interested Bidders for entering into **rate contract valid for four years** as defined below:

S. No.	Description	EMD Amount (Rs.)	Tender Fee (Rs.)
1	Purchase of SAN Switches	3,51,000/-	5000/-

1.2 Availability of Tender Documents

Non-transferable tender documents may be purchased by interested eligible bidders from address given below, on submission of written application to the under mentioned and upon payment of non-refundable Tender Fee of requisite amount as mentioned above towards cost of bid documents.

HOD (Contracts)

NDPL House,
Corporate Office, Grid Substation Building,
Hudson Lines, Kingsway Camp, Delhi-110009

Interested bidders may also download the tender documents from Tata Power-DDL website www.tatapower-ddl.com with effect from **30.06.2025**. In the event detailed tender documents are downloaded from Tata Power-DDL website or are received through email from Tata Power-DDL, the Tender Fee shall be compulsorily submitted along with bids any such bid submitted without this Fee shall be rejected.

Bidders are requested to visit Tata Power-DDL website <http://www.tatapower-ddl.com> regularly for any modification/clarification to the bid documents. For Limited Tenders issued by Tata Power-DDL, the tender document shall be shared through e-mail or shall be available on the E-Procurement portal of Tata Power-DDL as the case may be.

1.3 Calendar of Events

(a)	Date of sale/ availability of tender documents from Tata Power-DDL Website	30.06.2025- 1600 Hours
(b)	Date of sale/ availability of tender documents from Tata Power-DDL Corporate Office	NA
(c)	Date & Time of Pre-Bid Meeting	07.07.2025 – 1500 Hours to 1530 Hours
(d)	Last Date of receipt of pre-bid queries if any	09.07.2025 up to 1600 Hours
(e)	Last Date of Posting Consolidated replies to all the pre-bid queries as received	11.07.2025 up to 1500 Hours
(f)	Last date and time of receipt of Bids	21.07.2025 up to 1600 Hours
(g)	Date & Time of opening technical bids & EMD (Envelope-1 & 2)	21.07.2025 at 1630 Hours
(h)	Date & Time of opening of Price of qualified bids	Will be notified to the successful bidders through our website / e-mail.

RFx No.: 5000003890

NIT No.: TPDDL/ENGG/ENQ/200001836/25-26

Note:- In the event of last date specified for submission of bids and date of opening of bids is declared as a closed holiday for Tata Power-DDL's office, the last date of submission of bids and date of opening of bids will be the following working day at appointed times.

Link for Pre Bid meeting-[Click here to join the meeting](#)

1.4 Mandatory documents required along with the Bid.

- 1.4.1 EMD of requisite value and validity
- 1.4.2 Tender Fee in case the tender is downloaded from website.
- 1.4.3 Requisite Documents for compliance to Qualification Criteria mentioned in Clause 1.7.
- 1.4.4 Drawing, Type Test details along with a sample of each item as specified at Annexure I (as applicable)
- 1.4.5 Duly signed and stamped 'Schedule of Deviations' as per Annexure III on bidder's letter head.
- 1.4.6 Duly signed and stamped 'Schedule of Commercial Specifications' as per Annexure IV on bidder's letter head.
- 1.4.7 Proper authorization letter/ Power of Attorney to sign the tender on the behalf of bidder.
- 1.4.8 Copy of PAN, GST, PF and ESI Registration (In case any of these documents is not available with the bidder, same to be explicitly mentioned in the 'Schedule of Deviations')

Please note that in absence of any of the above documents, the bid submitted by a bidder shall be liable for rejection.

1.5 Deviation from Tender

Normally, the deviations to tender terms are not admissible and the bids with deviation are liable for rejection. Hence, the bidders are advised to refrain from taking any deviations on this Tender. Still in case of any deviations, all such deviations shall be set out by the Bidders, clause by clause in the 'Annexure III - Schedule of Deviations' and same shall be submitted as a part of the Technical Bid.

1.6 Right of Acceptance/Rejection

Bids are liable for rejection in absence of following documents: -

- 1.6.1 EMD of requisite value and validity
- 1.6.2 Tender fee of requisite value
- 1.6.3 Price Bid as per the Price Schedule mentioned in Annexure-I
- 1.6.4 Necessary documents against compliance to Qualification Requirements mentioned at Clause 1.7 of this Tender Document.
- 1.6.5 Filled in Schedule of Deviations as per Annexure III
- 1.6.6 Filled in Schedule of Commercial Specifications as per Annexure IV
- 1.6.7 Receipt of Bid within the due date and time

Tata Power-DDL reserves the right to accept/reject any or all the bids without assigning any reason thereof.

1.7 Qualification Criteria

- a) The bidder should have average annual turnover of Rs. 50 lakhs in last 3 financial years. Copy of audited P&L Account to be submitted in this regard.
- b) The bidder should have executed similar works for INR 1.41 Cr or a single order for INR 70.16 lacs or 2 orders each for INR 42.09 lacs or 3 orders each for INR 35.08 lacs during last 3 years. Copy of work order / completion certificate to be submitted in this regard.

RFx No.: 5000003890

NIT No.: TPDDL/ENGG/ENQ/200001836/25-26

c) The bidder should be an authorized partner of OEM. Self-Certification or an Authorization Letter from OEM to be submitted in this regard.

d) In case the bidder has a previous association with Tata Power DDL for similar products and services, the performance feedback for that bidder by Tata Power DDL's User Group shall only be considered irrespective of Work Order / Performance certificates issued by any third organization.

e) Bidder should be a company registered in India with an office in Delhi/ NCR. Bidder should submit the undertaking and details of address in this regard.

1.8 Marketing Integrity

We have a fair and competitive marketplace. The rules for bidders are outlined in the General Condition of Contracts. Bidders must agree to these rules prior to participating. In addition to other remedies available, Tata Power-DDL reserves the right to exclude a bidder from participating in future markets due to the bidder's violation of any of the rules or obligations contained in the General Condition of Contracts. A bidder who violates the marketplace rules or engages in behavior that disrupts the fair execution of the marketplace, may result in restriction of a bidder from further participation in the marketplace for a length of time, depending upon the seriousness of the violation. Examples of violations include, but are not limited to:

- Failure to honor prices submitted to the marketplace.
- Breach of terms as published in TENDER/NIT

1.9 Supplier Confidentiality

All information contained in this tender is confidential and shall not be disclosed, published, or advertised in any manner without written authorization from Tata Power-DDL. This includes all bidding information submitted to Tata Power-DDL. All tender documents remain the property of Tata Power-DDL, and all suppliers are required to return these documents to Tata Power-DDL upon request. Suppliers who do not honor these confidentiality provisions will be excluded from participating in future bidding events.

2.0 Evaluation Criteria

- The bids will be evaluated technically on the compliance to tender terms and conditions.
- The bids will be evaluated commercially on the **overall all-inclusive lowest cost for complete BOQ - All-inclusive cost for buy back** as calculated in Annexure I.
- Tata Power-DDL reserves the right to split the order Line item wise / quantity wise among more than one Bidder. Hence all bidders are advised to quote their most competitive rates against each line item.
- Bidder has to mandatorily quote against each line item as mentioned in Schedule of Items [Annexure I]. Failing to do so, Tata Power-DDL may reject the bids.

NOTE: In case of a new bidder not registered with Tata Power-DDL, factory inspection and evaluation shall be carried out to ascertain bidder's manufacturing capability and quality procedures. However, Tata Power-DDL reserves the right to carry out factory inspection and evaluation for any bidder prior to technical qualification. In case a bidder is found as Disqualified in the factory evaluation, their bid shall not be evaluated any further and shall be summarily rejected. The decision of Tata Power-DDL shall be final and binding on the bidder in this regard.

RFx No.: 5000003890

NIT No.: TPDDL/ENGG/ENQ/200001836/25-26

2.1 Price Variation Clause:

Not applicable.

3.0 Submission of Bid Documents

3.1 Bid Submission

Bidders are requested to submit their offer in line with this Tender document. Tata Power-DDL shall respond to the clarification raised by various bidders and the replies will be sent to all participating bidders through Tata Power-DDL website/ e-tender portal/ e-mail.

Bids shall be submitted in 3 (three) parts:

FIRST PART: "EMD" of Rs. 3,51,000/- (Three Lacs and Fifty One Thousand only) valid for 210 days from the due date of bid submission in the form of BG / online NEFT/ RTGS transfer only. The EMD has to be strictly in the format as mentioned in General Condition of Contract, failing which it shall not be accepted by Tata Power-DDL, and the bid as submitted shall be liable for rejection. A separate non-refundable tender fee of stipulated amount also needs to be transferred online through NEFT/ RTGS in case the tender document is downloaded from our website.

Tata Power-DDL Bank Details for transferring Tender Fee and EMD is as below:

Account Name: TATA POWER DELHI DISTRIBUTION LIMITED

Bank Name: HDFC Bank Limited (Sandoz House, Worli, Mumbai 400018)

Bank Account No.: TAPDDLEMDTENDER

IFSC Code: HDFC0000240

Customer Code: EMDTENDER

Customer Name: All Business Associates

SECOND PART: "TECHNICAL BID" shall contain the following documents:

- a) Documentary evidence in support of qualifying criteria
- b) Technical literature/GTP/Type test report etc. *(if applicable)*
- c) Qualified manpower available
- d) Testing facilities *(if applicable)*
- e) No Deviation Certificate as per the Annexure III – Schedule of Deviations
- f) Acceptance to Commercial Terms and Conditions viz Delivery schedule/period, payment terms etc. as per the Annexure IV – Schedule of Commercial Specifications.
- g) Quality Assurance Plan/Inspection Test Plan for supply items *(if applicable)*

The technical bid shall be properly indexed and is to be submitted in Soft Copy though E-Tender portal of Tata Power-DDL. Hard Copy of Technical Bids need not be submitted.

THIRD PART: "PRICE BID" shall contain only the price details and strictly in format as mentioned in Annexure I along with explicit break up of basic prices, Taxes & duties, Freight etc. In case any discrepancy is observed between the item description stated in Schedule of Items mentioned in the tender and the price bid submitted by the bidder, the item description as mentioned in the tender document (to the extent modified through Corrigendum issued if any) shall prevail.

FOR BIDS INVITED THROUGH E-PROCUREMENT PORTAL:

The interested bidders are requested to obtain username and password for purpose of bid submission through e-procurement portal (<https://etender.tatapower-ddl.com/irj/portal>).

Bids shall be submitted in 3 (Three) parts on the assigned folder of e-procurement site. May please refer the user manual available at <https://etender.tatapower-ddl.com/irj/portal>.



RFx No.: 5000003890

NIT No.: TPDDL/ENGG/ENQ/200001836/25-26

Bids have to be mandatorily submitted only through e-procurement portal of Tata Power-DDL. Bids submitted through any other form/ route shall not be admissible.

The EMD document should reach to below mentioned address:

Office of HOD (Contracts)
Tata Power Delhi Distribution Limited (Formerly, NDPL)
NDPL House, 33kV Grid Sub Station Building
Corporate Office, Hudson Lines, Kingsway Camp, Delhi – 110009

The outer envelope shall also bear the Name and Address of the Bidder along with our Tender No. and subject.

The Bid prepared by the Bidder, and all correspondence and documents relating to the Bid exchanged by the Bidder and the Tata Power-DDL, shall be written in the English Language. Any printed literature furnished by the Bidder may be written in another Language, provided that this literature is accompanied by an English translation, in which case, for purposes of interpretation of the Bid, the English translation shall govern.

The Bidder has the option of sending the Bids in person. Bids submitted by Email/Telex/Telegram /Fax will be rejected. No request from any Bidder to the Tata Power-DDL to collect the proposals from Courier/Airlines/Cargo Agents etc. shall be entertained by the Tata Power-DDL.

SIGNING OF BID DOCUMENTS:

The bid must contain the name, residence, and place of business of the person or persons making the bid and must be signed and sealed by the Bidder with his usual signature. The names of all persons signing should also be typed or printed below the signature.

The Bid being submitted must be signed by a person holding a Power of Attorney authorizing him to do so, certified copies of which shall be enclosed.

The Bid submitted on behalf of companies registered with the Indian Companies Act, for the time being in force, shall be signed by persons duly authorized to submit the Bid on behalf of the Company and shall be accompanied by certified true copies of the resolutions, extracts of Articles of Association, special or general Power of Attorney etc. to show clearly the title, authority and designation of persons signing the Bid on behalf of the Company. Satisfactory evidence of authority of the person signing on behalf of the Bidder shall be furnished with the bid.

A bid by a person who affixes to his signature the word 'President', 'Managing Director', 'Secretary', 'Agent' or other designation without disclosing his principal will be rejected.

The Bidder's name stated on the Proposal shall be the exact legal name of the firm.

3.2 Contact Information

All the bidders are requested to send their pre-bid queries (if any) against this tender through e-mail within the stipulated timelines. The consolidated reply to all the queries received shall be posted on Tata Power-DDL website by the stipulated timelines as detailed in calendar of events.

Communication Details:

Handling Executive for this Tender:

Name : Mr. Rajat Pratap Singh
Contact No. : +91-9717996349

RFx No.: 5000003890

NIT No.: TPDDL/ENGG/ENQ/200001836/25-26

E-Mail ID : rajat.pratap@tatapower-ddl.com

Head of Group – Contracts:

Name : Mr. CM Middha

Contact No. : 011-66039146

E-Mail ID : cm.middha@tatapower-ddl.com

3.3 Bid Prices

Bidders shall quote for the entire Scope of Supply/ work with a breakup of prices for individual items and Taxes & duties. The bidder shall complete the appropriate Price Schedules included herein, stating the Unit Price for each item & total price with taxes, duties & freight up to destination at various sites of Tata Power-DDL. The all-inclusive prices offered shall be inclusive of all costs as well as Duties, Taxes and Levies paid or payable during the execution of the supply work, breakup of price constituents.

The quantity break up shown else-where other than Price Schedule is tentative. The bidder shall ascertain himself regarding material required for completeness of the entire work. Any items not indicated in the price schedule, but which are required to complete the job as per the Technical Specifications/ Scope of Work/ SLA mentioned in the tender, shall be deemed to be included in prices quoted.

3.4 Bid Currencies

Prices shall be quoted in Indian Rupees Only.

3.5 Period of Validity of Bids

Bids shall remain valid for 180 days from the due date of submission of the bid.

Notwithstanding clause above, the Tata Power-DDL may solicit the Bidder's consent to an extension of the Period of Bid Validity. The request and responses thereto shall be made in writing.

3.6 Alternative Bids

Bidders shall submit Bids, which comply with the Bidding documents. Alternative bids will not be considered. The attention of Bidders is drawn to the provisions regarding the rejection of Bids in the terms and conditions, which are not substantially responsive to the requirements of the bidding documents.

3.7 Modifications and Withdrawal of Bids

The bidder is not allowed to modify or withdraw its bid after the Bid's submission. The EMD as submitted along with the bid shall be liable for forfeiture in such event.

3.8 Earnest Money Deposit (EMD)

The bidder shall furnish, as part of its bid, an EMD amounting as specified in the tender. The EMD is required to protect the Tata Power-DDL against the risk of bidder's conduct which would warrant forfeiture.

The EMD shall be denominated in any of the following form:

- Online transfer of requisite amount through NEFT/ RTGS.
- Bank Guarantee valid for 210 days after due date of submission.

The EMD shall be forfeited in case of:

- a) The bidder withdraws its bid during the period of specified bid validity.

Or

- b) The case of a successful bidder if the Bidder does not
 - b.1) accept the purchase order, or
 - b.2) furnish the required performance security BG

4.0 Bid Opening & Evaluation process

4.1 Process to be confidential

Information relating to the examination, clarification, evaluation and comparison of Bids and recommendations for the award of a contract shall not be disclosed to Bidders or any other persons not officially concerned with such process. Any effort by a Bidder to influence the Tata Power-DDL's processing of Bids or award decisions may result in the rejection of the Bidder's Bid.

4.2 Technical Bid Opening

Bids will be opened at Corporate Office of Tata Power-DDL as per the schedule mentioned in Calendar of Events. In case of limited tenders, the bids shall be opened internally by Tata Power-DDL. In case of Open Tenders, the bids shall be opened in the presence of accredited representatives of bidders who may choose to be present at the time of tender opening. Technical bid must not contain any cost information whatsoever.

First the envelope marked "EMD" will be opened. Bids without EMD/cost of tender (if applicable) of required amount/ validity in prescribed format, shall be rejected.

Next, the technical bid of the bidders who have furnished the requisite EMD will be opened, one by one. The salient particulars of the techno commercial bid will be read out at the sole discretion of Tata Power-DDL.

4.3 Preliminary Examination of Bids/Responsiveness

Tata Power-DDL will examine the Bids to determine whether they are complete, whether any computational errors have been made, whether required sureties have been furnished, whether the documents have been properly signed, and whether the Bids are generally in order. Tata Power-DDL may ask for submission of original documents in order to verify the documents submitted in support of qualification criteria.

Arithmetical errors will be rectified on the following basis: If there is a discrepancy between the unit price and the total price per item that is obtained by multiplying the unit price and quantity, the unit price shall prevail and the total price per item will be corrected. If there is a discrepancy between the Total Amount and the sum of the total price per item, the sum of the total price per item shall prevail and the Total Amount will be corrected.

Prior to the detailed evaluation, Tata Power-DDL will determine the substantial responsiveness of each Bid to the Bidding Documents including production capability and acceptable quality of the Goods offered. A substantially responsive Bid is one, which conforms to all the terms and conditions of the Bidding Documents without material deviation.

Bid determined as not substantially responsive will be rejected by the Tata Power-DDL and/or the Tata Power-DDL and may not subsequently be made responsive by the Bidder by correction of the non-conformity.

4.4 Techno Commercial Clarifications

Bidders need to ensure that the bids submitted by them are complete in all respects. To assist in the examination, evaluation, and comparison of Bids, Tata Power-DDL may, at its discretion, ask the

RFx No.: 5000003890

NIT No.: TPDDL/ENGG/ENQ/200001836/25-26

Bidder for a clarification on its Bid for any deviations with respect to the Tata Power-DDL specifications and attempt will be made to bring all bids on a common footing. All responses to requests for clarification shall be in writing and no change in the price or substance of the Bid shall be sought, offered, or permitted owing to any clarifications sought by Tata Power-DDL. After all techno commercial issues are clarified, the date of price bid opening will be intimated to the technically accepted bidders and same shall also be notified at Tata Power-DDL website.

4.5 Price Bid Opening

Price bids will be opened at the stipulated date and time. The EMD of the bidder withdrawing or substantially altering his offer at any stage after the technical bid opening will be forfeited at the sole discretion of Tata Power-DDL without any further correspondence in this regard.

4.7 Reverse Auctions

Tata Power-DDL reserves the right to conduct the reverse auction (instead of public opening of price bids) for the products/ services being asked for in the tender. The terms and conditions for such reverse auction events shall be as per the Acceptance Form attached as Annexure VI of this document. The bidders along with the tender document shall mandatorily submit a duly signed copy of the Acceptance Form attached as Annexure VI as a token of acceptance for the same.

5.0 Award Decision

Tata Power-DDL will award the contract to the successful bidder whose bid has been determined to be the lowest-evaluated responsive bid as per the Evaluation Criterion mentioned at Clause 2.0. The Cost for the said calculation shall be taken as the all-inclusive cost quoted by bidder in Annexure I (Schedule of Items) subject to any corrections required in line with 4.3 above. The decision to place purchase order/LOI solely depends on Tata Power-DDL on the cost competitiveness across multiple lots, quality, delivery and bidder's capacity, in addition to other factors that Tata Power-DDL may deem relevant.

Tata Power-DDL reserves all the rights to award the contract to one or more bidders so as to meet the delivery requirement or nullify the award decision without assigning any reason thereof.

In case any supplier is found unsatisfactory during the delivery process, the award will be cancelled and Tata Power-DDL reserves the right to award other suppliers who are found fit.

6.0 Order of Preference/Contradiction:

In case of contradiction in any part of various documents in tender, following shall prevail in order of preference:

1. Schedule of Items (Annexure I)
2. Post Award Contract Administration (Clause 7.0)
3. Submission of Bid Documents (Clause 3.0)
4. Scope of Work and SLA
5. Technical Specifications (Annexure II)
6. Acceptance Form for Participation in Reverse Auction (Annexure VI)
7. General Conditions of Contract (Annexure IX)

7.0 Post Award Contract Administration

7.1 Special Conditions of Contract

- Tata Power-DDL appreciates and welcomes the engagement/employment of persons from SC/ST community or any other deprived section of society by their BAs.

RFx No.: 5000003890

NIT No.: TPDDL/ENGG/ENQ/200001836/25-26

- Any change in statutory taxes, duties and levies during the contract period shall be borne by Tata Power-DDL. However, in case of delay in work execution owing to reasons not attributable to Tata Power-DDL, any increase in total liability shall be passed on the Bidder, whereas any benefits arising owing to such statutory variation in taxes and duties shall be passed on Tata Power-DDL.
- Prices shall remain FIRM during validity of contract. Firm **Purchase order** shall be awarded.
- MDCC shall not be applicable.
- Associate shall submit 10% of Contract Value as PBG in case of Purchase Order and 5% of Contract Value as PBG within 21 days in case of Rate Contract from date of PO/RC issuance. This shall remain valid till the warranty period plus one month.
- Material shall be delivered within 6 weeks from the date of PO issuance. Installation shall be done within 2 weeks from the date of intimation by EIC.
- **Payments terms:**
 - a. **MSME Bidders:** - Upon completion of delivery and installation (if any), Tata Power-DDL will make 100% payment against the RO within 45 days of submission of Certified Bill / Invoice complete in all respects and along with all the requisite documents at Bill Inward Receipt Desk (BIRD) located at Civil Lines I Office, Tata Power-DDL, near Delhi Vidhan Sabha.
 - b. **Non-MSME Bidders:** - Upon completion of delivery and installation (if any), Tata Power-DDL will make 100% payment against the RO within 60 days of submission of Certified Bill / Invoice complete in all respects and along with all the requisite documents at Bill Inward Receipt Desk (BIRD) located at Civil Lines I Office, Tata Power-DDL, near Delhi Vidhan Sabha.
- Tata Power-DDL reserves the right to split the order quantity wise among more than one Bidder. Hence all bidders are advised to quote their most competitive rates against each line item.
- Tata Power-DDL reserves the rights to enhance the value of the awarded RC by a maximum of 15% on same rate, terms, and conditions during the contract validity period.
- The BA shall ensure to mention 6-digit HSN Code in invoice in compliance with Govt. Notification. It shall be applicable to those bidders whose turnover in last FY was more than 5 Cr.
- Bidder shall visit the site and assess the approach to the site for movement of his men and material. Bidder may arrange any strengthening/repair of the approach if required. TPDDL shall not be liable for the same nor bear any cost on account of this.
- Bidder shall carry out the work in such a way that that no damage is done to the existing adjacent structures. In case of any damage, bidder shall repair/restore the same at his own cost. TPDDL shall not be liable for the same nor bear any cost on account of this.
- Tata Power-DDL reserves the right to seek breakup of the prices as quoted by them against line items as calculated in schedule of items Annexure I. In case it is observed that the bidders have under-quoted the prices against these line items. Tata Power-DDL reserves the right to out rightly-reject the bid.
- Wherever applicable, bidder shall adhere to Indian Telegraph (Amendment) Rules 2017 and further changes made from time to time and shall ensure to provide MTCTE (Mandatory Testing and Certification of Telecom Equipment) compliant products only.

RFx No.: 5000003890

NIT No.: TPDDL/ENGG/ENQ/200001836/25-26

- If at any stage, it is found that documents submitted by bidder are/were fake or forged, TPDDL reserves the right to initiate appropriate action, which shall not be limited to blacklisting and banning the bidder for future tendering but may take legal actions as per the appropriate statute.
- All other terms and conditions of **Tata Power-DDL GCC-Composite** shall be applicable.

7.2 Drawing Submission & Approval

Not Applicable

7.3 Delivery Terms

As per clause 7.1.

7.4 Warranty Period

Post user acceptance testing there shall be 7 Years Comprehensive Onsite warranty on Hardware & software.

7.5 Payment Terms

As mentioned in clause 7.1.

7.6 Climate Change

Significant quantities of waste are generated during the execution of project and an integrated approach for effective handling, storage, transportation, and disposal of the same shall be adopted. This would ensure the minimization of environmental and social impact in order to combat the climate change.

7.7 Ethics

Tata Power-DDL is an ethical organization and as a policy Tata Power-DDL lays emphasis on ethical practices across its entire domain. Bidder should ensure that they should abide by all the ethical norms and in no form either directly or indirectly be involved in unethical practice.

Tata Power-DDL work practices are governed by the Tata Code of Conduct which emphasizes on the following:

- We shall select our suppliers and service providers fairly and transparently.
- We seek to work with suppliers and service providers who can demonstrate that they share similar values. We expect them to adopt ethical standards comparable to our own.
- Our suppliers and service providers shall represent our company only with duly authorized written permission from our company. They are expected to abide by the Code in their interactions with, and on behalf of us, including respecting the confidentiality of information shared with them.
- We shall ensure that any gifts or hospitality received from, or given to, our suppliers or service providers comply with our company's gifts and hospitality policy.
- We respect our obligations on the use of third-party intellectual property and data.

Bidder is advised to refer **GCC-Composite** attached at Annexure VII for more information.

Any ethical concerns with respect to this tender can be reported to the following e-mail ID:

ajay.agarwal@tatapower-ddl.com

8.0 Specification and standards

As per Annexure II.

9.0 General Condition of Contract

Any condition not mentioned above shall be applicable as per **GCC- Composite** attached along with this tender at Annexure VII.

10.0 Safety

Safety related requirements as mentioned in our safety Manual put in the Company's website which can be accessed by:

<http://www.tatapower-ddl.com>

All Associates shall strictly abide by the guidelines provided in the safety manual at all relevant stages during the contract period.

11.0 Sustainability

Green Supply Chains can be seen as logistic structures that guarantee the production and distribution of products in an environmentally friendly manner. All Associates shall share the details about following during bid submission

- Existence of Rain water harvesting system at their factory premises for recharging the ground water.
- Deployment of Solar Panel at the Factory Site for Energy conservation
- Deployment of EV vehicles at the Vendor Site / Internal movement purpose

Bidders are required to utilize exclusively energy-efficient equipment when carrying out any work at TATA Power DDL's site.

- **Bidder shall also revert with duly filled SSI questionnaire and undertaking as per Annexure XII and XIII.**

Annexure I
Schedule for Items (BOQ)

Table 1 (Purchase of SAN Switch)

S.no	Item Description	Qty	UOM	Unit Price (Rs)	Applicable Taxes (%)	Total All Inclusive Value (Rs).
1	Delivery, Installation, Configuration & Migration of SAN Switches (96 Ports) as per SoW including Warranty time period, terms and conditions as mentioned in the document.	2	EA			
Total All Inclusive BOQ value (Rs)						

Table 2 (Buy Back Devices)

S.no	Item Description	Qty	UOM	Unit Price (Rs)	Applicable Taxes (%)	Total All Inclusive Value (Rs).
1	Brocade CONNECTRIX DS-6520B. 96 Fibre Channel ports (SFP+), Auto-sensing 4/8/16 Gbps, Dual, hot-swappable redundant PSUs	2	EA			
2	Brocade CONNECTRIX DS-5100B 40 Fibre Channel ports (SFP+), Auto-sensing 4/8/16 Gbps, Dual, hot-swappable redundant PSUs	2	EA			
3	Brocade CONNECTRIX DS-6510B48 Fibre Channel ports (SFP+), Auto-sensing 4/8/16 Gbps, Dual, hot-swappable redundant PSUs	2	EA			
Total All Inclusive Buy Back value (Rs)						

NOTE:

- The bidders are advised to quote prices strictly in the above format and for all the line items as mentioned above. Failing to do so, bids are liable for rejection.
- The bidder must fill each and every column of the above format. *Mentioning “extra/inclusive” in any of the column may lead for rejection of the price bid.*
- No cutting/ overwriting in the prices is permissible.
- The unit price to be indicated above should be exclusive of taxes & duties which are to be indicated in separate columns meant for the purpose.
- The prices shall be FOR Tata Power-DDL Locations and to be inclusive of all allied expenses incurred for subject work.



RFx No.: 5000003890

NIT No.: TPDDL/ENGG/ENQ/200001836/25-26

- TPDDL reserves the right to enhance/diminish the contract value by fifteen percent as per business requirement.
- The quantities as mentioned above are for evaluation purpose only. Actual quantities may vary as per requirements & Tata Power-DDL shall place contract accordingly.
- Tata Power-DDL reserves the right to split the order quantity wise among more than one Bidder. Hence all bidders are advised to quote their most competitive rates against each line item.
- 6 digits HSN code has to be mandatorily mentioned in col.No.5 if your annual turnover in Last FY is > Rs. 5 Cr.

CONFIDENTIAL



RFx No.: 5000003890

NIT No.: TPDDL/ENGG/ENQ/200001836/25-26

Annexure II

Technical Specification

Attached Separately

CONFIDENTIAL

Annexure III

Schedule of Deviations

*Bidders are advised to refrain from taking any deviations on this TENDER. Still in case of any deviations, all such deviations from this tender document shall be set out by the Bidders, Clause by Clause in this schedule and submit the same as a part of the **Technical Bid**.*

Unless specifically mentioned in this Schedule of Deviations / Annexure IV - Schedule of Commercial Specification, the tender shall be deemed to confirm the Tata Power-DDL's specifications:

Technical Deviations: -

S. No.	Clause No.	Tender Clause Details	Details of deviation with justifications

Commercial Deviations: -

S. No.	Clause No.	Tender Clause Details	Details of deviation with justifications

By signing this document, we hereby withdraw all the deviations whatsoever taken anywhere in this bid document and comply to all the terms and conditions, technical specifications, scope of work etc. as mentioned in the standard document except those as mentioned above.

Seal of the Bidder:

Signature:

Name:

Annexure IV

Schedule of Commercial Specifications

(The bidders shall mandatorily fill in this schedule and enclose it with the offer Part I: Technical Bid. In the absence of all these details, the offer may not be acceptable.)

S. No.	Particulars	Remarks
1.	Prices firm or subject to variation (If variable indicate the price variation clause with the ceiling if applicable)	Firm / Variable
1a.	If variable price variation on clause given	Yes / No
1b.	Ceiling	----- %
1c.	Inclusive of Excise Duty	Yes / No (If yes, indicate % rate)
1d.	Sales tax applicable at concessional rate	Yes / No (If yes, indicate % rate)
1e.	Octroi payable extra	Yes / No (If yes, indicate % rate)
1f.	Inclusive of transit insurance	Yes / No
2.	Delivery	Weeks / months
3.	Guarantee clause acceptable	Yes / No
4.	Terms of payment acceptable	Yes / No
5.	Performance Bank Guarantee Acceptable (As per clause 7.1)	Yes / No
6.	Liquidated damages clause acceptable	Yes / No
7.	Validity (180 days) (From the date of opening of technical bid)	Yes / No
8.	Inspection during stage of manufacture	Yes / No
9.	Rebate for increased quantity	Yes / No (If yes, indicate value)
10.	Change in price for reduced quantity	Yes / No (If Yes, indicate value)
11.	Covered under Small Scale and Ancillary Industrial Undertaking Act 1992	Yes / No (If yes, indicate, SSI Reg'n No.)

Annexure V

A) Checklist of all the documents to be submitted with the Bid

Bidder has to mandatorily fill in the checklist mentioned below: -

S. No.	Documents attached	Yes / No / Not Applicable
1	EMD of required value	
2	Tender Fee as mentioned in this RFQ	
3	Company profile/organogram	
4	Communication Matrix	
5	Signed copy of this RFQ as an unconditional acceptance	
6	Duly filled schedule of commercial specifications (Annexure IV)	
7	Sheet of commercial/technical deviation if any (Annexure III)	
8	Balance sheet for the last completed three financial years; mandatorily enclosing Profit & loss account statement	
9	List of Machine/tools with updated calibration certificates if applicable	
10	Details of order copy (duly mentioned on bidder letter head)	
11	Order copies as a proof of quantity executed	
12	Project/supply Completion certificates	
13	Performance certificates	
14	Client Testimonial/Performance Certificates	
15	Documents in compliance to Qualification Requirement (Clause No. 1.7)	
16	Credit rating/solvency certificate	
17	Undertaking regarding non-blacklisting (On company letter head)	
18	List of trained/untrained Manpower	

Annexure VI

ACCEPTANCE FORM FOR PARTICIPATION IN REVERSE AUCTION EVENT

(To be signed and stamped by the bidder)

In a bid to make our entire procurement process fairer and more transparent, Tata Power-DDL intends to use the reverse auctions through SAP-SRM tool as an integral part of the entire tendering process. All the bidders who are found as technically qualified based on the tender requirements shall be eligible to participate in the reverse auction event.

The following terms and conditions are deemed as accepted by the bidder on participation in the bid event:

1. Tata Power-DDL shall provide the user id and password to the authorized representative of the bidder. *(Authorization Letter in lieu of the same shall be submitted along with the signed and stamped Acceptance Form).*
2. Tata Power-DDL will make every effort to make the bid process transparent. However, the award decision by Tata Power-DDL would be final and binding on the supplier.
3. The bidder agrees to non-disclosure of trade information regarding the purchase, identity of Tata Power-DDL, bid process, bid technology, bid documentation, and bid details.
4. The bidder is advised to understand the auto bid process to safeguard themselves against any possibility of non-participation in the auction event.
5. In case of bidding through Internet medium, bidders are further advised to ensure availability of the entire infrastructure as required at their end to participate in the auction event. Inability to bid due to telephone line glitch, internet response issues, software or hardware hangs, power failure or any other reason shall not be the responsibility of Tata Power-DDL.
6. In case of intranet medium, Tata Power-DDL shall provide the infrastructure to bidders. Further, Tata Power-DDL has sole discretion to extend or restart the auction event in case of any glitches in infrastructure observed which has restricted the bidders to submit the bids to ensure fair & transparent competitive bidding. In case of an auction event is restarted, the best bid as already available in the system shall become the start price for the new auction.
7. In case the bidder fails to participate in the auction event due any reason whatsoever, it shall be presumed that the bidder has no further discounts to offer, and the initial bid as submitted by the bidder as a part of the tender shall be considered as the bidder's final no regret offer. Any offline price bids received from a bidder in lieu of non-participation in the auction event shall be out-rightly rejected by Tata Power-DDL.
8. The bidder shall be prepared with competitive price quotes on the day of the bidding event.
9. The prices as quoted by the bidder during the auction event shall be inclusive of all the applicable taxes, duties and levies and shall be FOR at Tata Power-DDL site.
10. The prices submitted by a bidder during the auction event shall be binding on the bidder.
11. No requests for time extension of the auction event shall be considered by Tata Power-DDL.
12. The original price bids of the bidders shall be reduced on pro-rata basis against each line item based on the final all-inclusive prices offered during conclusion of the auction event for arriving at Contract amount.

Signature & Seal of the Bidder



RFx No.: 5000003890

NIT No.: TPDDL/ENGG/ENQ/200001836/25-26

Annexure VII

General Conditions of Contract

Attached Separately

CONFIDENTIAL

Annexure VIII
Scope of Work / Service Level Agreement

ATTACHED SEPERATELY

CONFIDENTIAL

Annexure IX

GUIDING PRINCIPLES FOR SUSTAINABLE PROCUREMENT

(To be signed and stamped by the bidder)

To ensure sustainable procurement at TATA Power DDL, It is expected from Business associates to integrate environmental, social and ethical principles into their businesses as per the guidelines enlisted below.

1. Eco friendly transport wherever feasible during execution of the Contract.
2. Compliance to Statutory and regulatory pollution norms like prevalent BS norm, Pollution Certificate etc.
3. Formulate a waste management plan and having the waste reduction targets with monitoring.
4. Reduction/recycling of all types of waste during the production lifecycle of material /execution of service majorly
 - a. Plastic waste
 - b. E –waste
 - c. Any other non-biodegradable waste
5. Responsible disposal of any hazardous waste as per Govt. /Pollution Control committee guidelines.
6. Vendor to use environmentally preferable chemical products if they exist (e.g. low-VOC paints, biodegradable cleaning products) and safe lubricants wherever technically feasible.
7. Packaging material to be non-hazardous and biodegradable to the extent possible
8. Bidders are further advised to ensure reusable packaging be utilized at their end wherever possible during.
9. Necessary involvement and development of community through employment creation and skills development, technology development and access, wealth and income creation, health, social investment.
10. Support the principles of the Universal Declaration of Human Rights.
11. Refusal to forced labour. Employees must not be required to submit deposits, money or papers with their employer.
12. Refusal to accept the use of child labour in the supply chain.
13. A healthy and safe working environment must be provided for all employees, in accordance with standards and laws.

Signature & Seal of the Bidder



RFx No.: 5000003890

NIT No.: TPDDL/ENGG/ENQ/200001836/25-26

Annexure X

Responsible Value Chain Partner
Code of Conduct Declaration

(To be filled & reverted signed stamped)

We,[Value Chain Partner], acknowledge that we have read and understand Tata Power-DDL's Responsible Value Chain Partner Code of Conduct published at <https://www.tatapower-ddl.com/corporate/our-company/corporate-policies> and agree to comply with its requirements.

We further undertake to report to the Company, any actual or suspected violation of the Responsible Value Chain Partner Code of Conduct or any applicable laws in relation to its business transaction with the Company.

.....[Value Chain Partner] acknowledges that failure to comply with the Responsible Value Chain Partner Code of Conduct may result in corrective or penal action including suspension or termination of our business relationship with Tata Power-DDL.

Signature: _____

Date: _____

Name of authorized signatory: _____

Designation of signatory: _____

Organization's name: _____

Signature & Seal of the Bidder

ANNEXURE-XI**Declaration for Compliance to Tata Power DDL's Sustainable Policy**

Date:

Tender Enquiry No.:

To,

HOD (Contracts)

Tata Power Delhi Distribution Limited,

TPDDL House, 33kV Grid Sub Station Building,

Corporate Office, Hudson Lines, Kingsway Camp, Delhi – 110009

Sir,

I,[Name of Bidder], operating from[Address of Bidder from where material is supplied], hereby solemnly affirm my commitment of adherence to Tata Power DDL's Sustainable Policy. As per the policy requirements, I pledge to implement/comply following parameters at the aforementioned address.

S No.	Parameter	Date of Implementation/Compliance
1	RWH System Implementation of Capacity.....(KLD)	
2	Complete use of Bio-degradable plastic in packaging etc.	
3	'No' Thermocol Use in packaging etc.	

We assure our full cooperation and compliance with Tata Power DDL's Sustainable Policy and confirm our commitment to fulfill above parameters as specified.

Yours sincerely,

For

Signature & Seal of the Bidder

Annexure XII

Questionnaire for Sustainability Index Scoring

Attached separately

Bidder shall revert with duly filled, signed and stamped document

CONFIDENTIAL

Annexure XIII

Communication Matrix

S. No.	Designation	Name	Mobile No.	E-mail id
1	CEO/ MD			
2	Sales/ Marketing Head			
3	Technical/ Operations Head			
4	Sales Representative			



RFx No.: 5000003890

NIT No.: TPDDL/ENGG/ENQ/200001836/25-26

Annexure XIV

Manufacturers Authorization Form

Date:

Tender Enquiry No.:

To,

HOD (Contracts)

Tata Power Delhi Distribution Limited,

TPDDL House, 33kV Grid Sub Station Building,

Corporate Office, Hudson Lines, Kingsway Camp, Delhi – 110009

Sir,

WHEREAS M/s. [name of OEM], who are official manufacturers of having factories at[address of OEM] do hereby authorize M/s [name of bidder] to submit a Bid in relation to the Invitation for Bids indicated above, the purpose of which is to provide the following Goods, manufactured by us and to subsequently negotiate and sign the Contract.

We hereby extend our full guarantee and warranty in accordance with the Special Conditions of Contract or as mentioned elsewhere in the Tender Document, with respect to the Goods offered by the above firm in reply to this Invitation for Bids.

We hereby confirm that in case, the channel partner fails to provide the necessary services as per the Tender Document referred above, M/s [name of OEM] shall provide standard warranty on the materials supplied against the contract. The warranty period and inclusion / exclusion of parts in the warranty shall remain same as defined in the contract issued to their channel partner against this tender enquiry.

Yours Sincerely,

For

Authorized Signatory